

SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

Agreement No. NB-2025-014

This Software-as-a-Service Subscription Agreement (this “Agreement”) is entered into as of April 01, 2025 (the “Effective Date”) by and between **Northbound Software Inc.**, a corporation with its principal place of business at 220 King Street West, Toronto, ON M5H 1K4, Canada (“Provider”), and **Nimbus Networks Inc.**, with its principal place of business at 999 Canada Place, Vancouver, BC V6C 3E1 (“Customer”). Provider and Customer may be referred to individually as a “Party” and collectively as the “Parties.”

1. Definitions

“Service” means Provider’s cloud-based software platform made available to Customer on a subscription basis, together with any related documentation and updates.

“Authorized Users” means Customer’s employees or contractors permitted to access the Service on Customer’s behalf.

“Subscription Term” means the period during which Customer is entitled to access the Service, as set out in Section 3.

2. Grant of Access

Subject to the terms of this Agreement and Customer’s payment of the applicable fees, Provider grants Customer a non-exclusive, non-transferable, worldwide right to access and use the Service during the Subscription Term, solely for Customer’s internal business purposes and subject to the usage limits associated with the subscription plan set out in Section 4.

3. Term and Renewal

This Agreement commences on the Effective Date and continues for an initial term of twelve (12) months (the “Initial Term”), and shall automatically renew for successive twelve (12) month periods unless either Party gives written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

4. Subscription Plan and Fees

Customer subscribes to the **Hybrid** plan. Customer shall pay a fixed platform fee of CAD \$800.00 per month, plus usage-based charges of CAD \$0.08 per GB processed for actual consumption of the Service during each monthly billing period. Fees are stated in Canadian Dollars (CAD) and are exclusive of applicable taxes.

5. Invoicing and Payment

Provider shall invoice Customer monthly in arrears for all fixed and usage-based charges incurred during the preceding billing period. Undisputed invoices are payable within thirty (30) days of the invoice date. Late amounts may accrue interest at 1.5% per month or the maximum rate permitted by law.

6. Service Levels and Support

Provider will use commercially reasonable efforts to make the Service available with a monthly uptime of at least 99.5%, excluding scheduled maintenance and events beyond Provider’s reasonable control. Provider will provide standard technical support during business hours (Eastern Time).

7. Customer Responsibilities

Customer is responsible for the acts and omissions of its Authorized Users, for maintaining the confidentiality of account credentials, and for ensuring its use of the Service complies with applicable laws and the plan usage limits. Customer shall not resell, sublicense, or reverse-engineer the Service.

8. Data Protection and Confidentiality

Each Party shall protect the other's Confidential Information using at least reasonable care and shall not disclose it except to personnel who need to know it for purposes of this Agreement. Provider shall implement commercially reasonable technical and organizational measures to protect Customer data and shall process personal data in accordance with applicable privacy laws, including PIPEDA.

9. Intellectual Property

As between the Parties, Provider retains all right, title, and interest in and to the Service. Customer retains all right, title, and interest in and to Customer data. No rights are granted except as expressly set out in this Agreement.

10. Warranties and Disclaimer

Each Party represents that it has the authority to enter into this Agreement. Except as expressly stated, the Service is provided "as is," and Provider disclaims all other warranties, whether express or implied, including implied warranties of merchantability and fitness for a particular purpose.

11. Limitation of Liability

Except for breaches of confidentiality or a Party's indemnification obligations, neither Party shall be liable for indirect, incidental, or consequential damages, and each Party's aggregate liability under this Agreement shall not exceed the total fees paid or payable by Customer in the twelve (12) months preceding the claim.

12. Termination

Either Party may terminate this Agreement for material breach that remains uncured thirty (30) days after written notice. Customer may terminate for convenience upon thirty (30) days' written notice; unless otherwise agreed in writing, prepaid fees are non-refundable. Upon termination, Customer's right to access the Service ceases and each Party shall return or destroy the other's Confidential Information on request.

13. Governing Law

This Agreement is governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein, without regard to conflict-of-laws principles. The Parties submit to the exclusive jurisdiction of the courts located in Toronto, Ontario.

14. Entire Agreement

This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior understandings. Any amendment must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PROVIDER

J. Marchetti

Northbound Software Inc.

By: Jordan Marchetti, VP Finance

Date: April 01, 2025

CUSTOMER

K. Watanabe

Nimbus Networks Inc.

By: Kenji Watanabe, Chief Technology Officer

Date: April 01, 2025